

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
HUSSEIN KADOUH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER [First Name Unknown]
PHILLIPS, Shield No. 6629, Individually and in his Official
Capacity, POLICE OFFICERS John Doe 1-10, such names being
fictitious and intended to represent persons employed as Police
Officers and whose names and Shield Numbers are presently
unknown, in their Official Capacities,

Defendants.
-----X

Date Filed:

Index No.:

PLAINTIFF DESIGNATES
KINGS COUNTY AS THE
PLACE OF TRIAL

SUMMONS

THE BASIS OF VENUE IS
INCIDENT SITUS and
PLAINTIFF'S RESIDENCE IN
THE COUNTY OF KINGS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and
to serve a copy of your answer on the plaintiff's attorney within 20 days after the service
of this summons, or within 30 days after service of this summons is complete if this
summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be
taken against you for the relief demanded in the complaint, together with the interest
costs and/or disbursements of this action.

Dated: New York, New York
October 1, 2019

KUBICK & ASSOCIATES, P.C.
32 Broadway, Suite 1514
NY, NY 10004
212.684.7541

To: THE CITY OF NEW YORK
Office of the Corporation Counsel
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

POLICE OFFICER PHILLIPS, Shield No. 6629
c/o NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
HUSSEIN KADOUH,

Plaintiff,

-against-

Index No.:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER [First Name Unknown]
PHILLIPS, Shield No. 6629, Individually and in his Official
Capacity, POLICE OFFICERS John Doe 1-10, such names being
fictitious and intended to represent persons employed as Police
Officers and whose names and Shield Numbers are presently
unknown, in their Official Capacities,

Defendants.
-----X

Plaintiff, HUSSEIN KADOUH, as and for his Complaint, by his attorney,
KUBICK & ASSOCIATES, P.C., respectfully alleges, upon information and belief, as
follows:

1. On and before July 5, 2018, plaintiff, HUSSEIN KADOUH, was a resident of the
County of Kings, City and State of New York.
2. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and
still is a municipal department, public benefit corporation, agency, and/or authority
existing under and pursuant to the Charter of the City of New York and established
under the laws of, servicing, and doing business in, the State of New York.
3. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK,
maintains the NEW YORK CITY POLICE DEPARTMENT, a duly authorized public
authority and/or police department, authorized to perform all functions of a police
department as per the applicable sections of the New York State Criminal Procedure
Law, acting under the direction and supervision of the aforementioned municipal
corporation, the City of New York.

4. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal department, public benefit corporation, agency, and/or authority existing under and pursuant to the Charter of the City of New York and established under the laws of, servicing, and doing business in, the State of New York.
5. At all times hereinafter mentioned, defendant, POLICE OFFICER [First Name Unknown] PHILLIPS, Shield No. 6629 [hereafter, "POLICE OFFICER PHILLIPS"], was and still is an individual residing in the State of New York.
6. At all times hereinafter mentioned, defendant, POLICE OFFICER PHILLIPS, was a duly sworn police officer of the NEW YORK CITY POLICE DEPARTMENT and was acting under the supervision of said department and according to his official duties.
7. At all times hereinafter mentioned, the defendants and/or either of them, either personally or through their employees, servants, agents and/or representatives, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State and/or City of New York.
8. Each and all of the acts of the defendants alleged herein were engaged in by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.
9. Each and all of the acts of the defendants alleged herein were engaged in by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.
10. At all times herein mentioned, plaintiff, HUSSEIN KADOUH, was the operator of a

motorbike.

11. At all times herein mentioned, 5th Avenue at or near its intersection with 15th Street in the County of Kings, City and State of New York, were and still are public highways.
12. On July 5, 2018, at or around 8:10 a.m., while plaintiff, HUSSEIN KADOUH, was operating his motorbike and was stopped at a red traffic light in the southbound traffic lane at the aforementioned location, defendant, POLICE OFFICER PHILLIPS drove an NYPD vehicle into the northbound traffic lane toward a point just to the left and in front of plaintiff's motorbike. Defendant, POLICE OFFICER PHILLIPS, then made a sharp right turn, accelerating the vehicle into the southbound traffic lane, and steered the vehicle directly toward plaintiff.
13. Plaintiff, HUSSEIN KADOUH, attempted to steer his motorbike out of the way in order to avoid injury to himself and damage to his motorbike. Defendant, POLICE OFFICER PHILLIPS, continued to accelerate the NYPD vehicle until the vehicle came into contact with plaintiff, forcing plaintiff across the southbound traffic lane and southbound dedicated bicycle lane, pinning his motorbike and his body against a vehicle parked in the adjacent southbound parking lane.
14. Defendant, POLICE OFFICER PHILLIPS, only moved the NYPD vehicle when plaintiff complained that he was pinned, that he could not move, and that the heated muffler of his motorbike was burning his foot.
15. Defendant, POLICE OFFICER PHILLIPS, approached the plaintiff, grabbed him by the arm and frisked him, removing a wallet from plaintiff's rear pants pocket. Defendant, POLICE OFFICER PHILLIPS, then opened plaintiff's wallet, searched its compartments and rifled through its contents.
16. Defendant, POLICE OFFICER PHILLIPS, told plaintiff that he was under arrest as he

summarily placed plaintiff's hands in handcuffs. Plaintiff asked POLICE OFFICER PHILLIPS why he was being arrested.

17. Defendant, POLICE OFFICER PHILLIPS, thereafter informed plaintiff that he was apprehending plaintiff for "running away from him" two months' prior and for not having a license to operate a motorbike.
18. Defendant, POLICE OFFICER PHILLIPS, called for back up assistance at the scene and a number of other police units responded.
19. Defendant, POLICE OFFICER PHILLIPS, falsely stated to other responding officers that plaintiff had tried to "run away from him" on the sidewalk.
20. Defendant, POLICE OFFICER PHILLIPS, did not acknowledge or report to other officers at the scene that he had hit plaintiff with the NYPD vehicle and pinned him to a parked car. He did not ask whether plaintiff was injured and required medical assistance, nor did he or any of the officers present render any assistance to plaintiff. Neither did any of the officers present radio or call for medical assistance to aid plaintiff.
21. Defendant, POLICE OFFICER PHILLIPS, placed plaintiff in the back of the NYPD vehicle and transported him to the 72nd precinct in Kings County, where plaintiff was booked and fingerprinted.
22. Defendant, POLICE OFFICER PHILLIPS, falsely stated to a commanding officer and/or sergeant at the precinct that plaintiff had attempted, two weeks prior, to kill POLICE OFFICER PHILLIPS with his motorbike.
23. Plaintiff, HUSSEIN KADOUH, was ultimately charged with operating a motorcycle without a license, operating a motorcycle without a helmet, operating a motorcycle without goggles, and resisting arrest.

24. Defendant, POLICE OFFICER PHILLIPS, assisted by another defendant, POLICE OFFICER John Doe, placed plaintiff in a holding cell.
25. On multiple occasions while in the holding cell, plaintiff HUSSEIN KADOUH informed various defendants, POLICE OFFICERS John Doe, that he was injured and required medical attention.
26. Plaintiff, HUSSEIN KADOUH, specifically told defendants, POLICE OFFICERS John Doe, that his leg was hurt and specifically requested that defendants, POLICE OFFICERS John Doe, allow him to go to a hospital emergency room.
27. Various defendants, POLICE OFFICERS John Doe, told plaintiff that there was “nothing wrong with him” and that he should not go to a hospital because he was going to be “charged with a lot of things.”
28. Plaintiff remained in a holding cell for a duration of approximately four (4) hours, where he suffered ongoing and increasing pain, discomfort and anguish.
29. At approximately 12:30 p.m., plaintiff was transported by ambulance, in handcuffs and foot shackles, to Lutheran Hospital, where he was examined in the Emergency Department. While plaintiff was shackled to a gurney in the Emergency Department, defendant POLICE OFFICER John Doe took photographs of plaintiff’s injuries.
30. Plaintiff, while in the Emergency Department at Lutheran Hospital, complained of pain in his foot, both legs, and his shoulder.
31. At or around 2:00 p.m. on July 5, 2018, plaintiff was transported back to the 72nd Precinct, where he was again confined to a holding cell until approximately 5:00 p.m., when he was transported, shackled with other detainees, to Central Booking.
32. Plaintiff was arraigned at or about 11:00 a.m. on July 6, 2018 and thereafter was released on his own recognizance, having been confined for approximately 25.5 hours.

33. Later on July 6, 2018, plaintiff returned to the 72nd Precinct to retrieve his personal property. While at the precinct, he requested a report of the collision that had occurred on the previous day, on 5th Avenue at or near its intersection with 15th Street, involving the NYPD vehicle operated by defendant POLICE OFFICER PHILLIPS and the motorbike operated by plaintiff. A police sergeant on duty spoke with plaintiff and said that no collision had taken place and that no report of a collision existed.
34. Upon recovering his property on July 6, 2018, including the wallet that he had been carrying on his person at the time of his arrest, plaintiff discovered that some of his credit cards and personal effects were missing.
35. In the days after his release from confinement, plaintiff continued to experience pain, discomfort and anguish and eventually sought treatment for his injuries.
36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "35" with the same force and effect as if more fully set forth herein.
37. Defendant, POLICE OFFICER PHILLIPS, an officer of defendant NEW YORK CITY POLICE DEPARTMENT, was on duty at or about 8:10 a.m. and thereafter on July 5, 2018.
38. Defendant, POLICE OFFICER PHILLIPS, was wearing an official uniform of the NEW YORK CITY POLICE DEPARTMENT bearing Shield Number 6629 at or about 8:10 a.m. and thereafter on July 5, 2018.
39. Defendant, POLICE OFFICER PHILLIPS, was operating an NYPD police cruiser bearing New York State license plate number GSR 4312 and the marking "NYPD" at or about 8:10 a.m. and thereafter on July 5, 2018.
40. Defendant, POLICE OFFICER PHILLIPS, acting under color of the authority of the

NEW YORK CITY POLICE DEPARTMENT and under color of the laws of the State and City of New York, caused and permitted the police vehicle he was operating to come violently into contact with plaintiff HUSSEIN KADOUH at or about 8:10 a.m. on July 5, 2018, in order to effectuate an arrest of plaintiff.

41. Defendant, POLICE OFFICER PHILLIPS, acting under color of the authority of the NEW YORK CITY POLICE DEPARTMENT and under color of the laws of the State and City of New York, caused and permitted the police vehicle he was operating to come into contact with plaintiff HUSSEIN KADOUH at or about 8:10 a.m. on July 5, 2018, in order to effectuate an arrest of plaintiff.

42. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff sustained numerous injuries, pain, physical disability and mental and emotional anguish.

43. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his right under the Fourth Amendment of the Constitution of the United States, and under related State and City laws, to be free from unreasonable seizure of his person.

44. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his rights under the Fourteenth Amendment of the Constitution of the United States, and under related State and City laws, to be free from deprivation of life and liberty without due process, and to have equal protection of the laws of the State and City of New York.

45. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs marked "1" through "45" with the same force and effect as if more fully set forth herein.

47. Defendant, POLICE OFFICER PHILLIPS, acting under color of the authority of the NEW YORK CITY POLICE DEPARTMENT and under color of the laws of the State and City of New York, did remove plaintiff's wallet from his plaintiff's pocket while plaintiff was handcuffed and did search the entire contents thereof and remove items therefrom at or about 8:10 a.m. and thereafter on July 5, 2018, without probable cause to do so and without having made a lawful request for plaintiff's identification.
48. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his right under the Fourth Amendment of the Constitution of the United States, and under related State and City laws, to be free from unreasonable search of his person, property and effects.
49. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his right under the Fourth Amendment of the Constitution of the United States, and under related State and City laws, to be free from unreasonable seizure of his property and effects.
50. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his rights under the Fourteenth Amendment of the Constitution of the United States, and under related State and City laws, to be free from deprivation of liberty without due process, and to have equal protection of the laws of the State and City of New York.
51. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "51" with the same force and effect as if more fully set forth herein.
53. Defendant, POLICE OFFICER PHILLIPS, acting under color of the authority of the NEW YORK CITY POLICE DEPARTMENT and under color of the laws of the State and City of New York, while engaged in his official duties as a police officer, in furtherance of his duties as a police officer and more particularly, as the arresting officer during the subject arrest, did make false statements to colleagues and superior officers on July 5, 2018 regarding offenses allegedly committed by the plaintiff; and the charges in connection therewith having been brought against plaintiff were eventually dismissed.
54. Defendant, POLICE OFFICER PHILLIPS, knew or had reason to know, or should have known by virtue of his experience and training, that the statements he made regarding offenses allegedly committed by the plaintiff were false.
55. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was charged with offenses which plaintiff had not committed, including operating a motorcycle without a helmet and resisting arrest.
56. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was confined to a cell for an inordinate length of time, during which defendants, POLICE OFFICERS John Doe 1-10, denied medical assistance to plaintiff and ignored and actively discouraged plaintiff's requests for same.
57. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was prevented from receiving timely assessment, care and treatment so as to minimize his pain and injuries and prevent aggravation and exacerbation of same.

58. As a result of the actions of POLICE OFFICER PHILLIPS, plaintiff was denied his rights under the Fourteenth Amendment of the Constitution of the United States, and under related State and City laws, to be free from deprivation of life and liberty without due process, and to have equal protection of the laws of the State and City of New York.
59. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully set forth herein.
61. Defendants, POLICE OFFICERS John Doe, the superior officers and supervising defendants personally caused plaintiff's constitutional injury(ies) by being deliberately and/or consciously indifferent to plaintiff's rights under the Constitution of the United States, and under related State and City laws, in failing to properly supervise and train the subordinate officers for whom they were responsible.
62. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and effect as if more fully set forth herein.

64. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and their employees, agents, officers and representatives, collectively and individually, while acting under color of law of the State and City of New York, engaged in and/or condoned conduct that constituted a custom, usage, practice, procedure, policy or rule of the respective municipality and/or authority and/or agency, which is forbidden by the Fourth and Fourteenth Amendments of the Constitution of the United States and related State and City laws.
65. The aforementioned customs, usages, practices, procedures, policies or rules included, *inter alia*, inadequate training and supervision of its employees with respect to search and seizure, proper issuance of summonses, proper procedures for effectuating an arrest, reasonable uses of force, limitations on uses of force, booking policies and procedures, responding to detainees in distress, making reports, keeping records, protecting custodial property and otherwise protecting the constitutional rights of individuals under the control and custody of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its individual employees, agents, officers and representatives. Defendants, POLICE OFFICERS John Doe, the superior officers and supervising officers personally caused plaintiff's constitutional injury(ies) by being deliberately and/or consciously indifferent to plaintiff's rights under the Constitution of the United States, and under related State and City laws, in failing to properly supervise and train the subordinate officers for whom they were responsible.
66. The aforementioned customs, usages, practices, procedures, policies and/or rules of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff HUSSEIN KADOUH.

67. The aforementioned customs, usages, practices, procedures, policies and/or rules of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were the direct and proximate cause of the constitutional violations suffered by plaintiff HUSSEIN KADOUH as alleged herein.
68. The aforementioned customs, usages, practices, procedures, policies and/or rules of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were the precipitating force behind the constitutional violations suffered by plaintiff HUSSEIN KADOUH as alleged herein.
69. The aforementioned customs, usages, practices, procedures, policies and/or rules of THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT resulted in plaintiff, HUSSEIN KADOUH, being unreasonably searched, unreasonably seized, maliciously prosecuted, deprived of his health and safety, and deprived of his property and effects.
70. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
71. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully set forth herein.
72. Within ninety (90) days after the claims herein accrued, plaintiff duly served upon, presented to and filed with THE CITY OF NEW YORK, Notices of Claim setting forth all facts and information regarding the subject occurrence, as required under the General Municipal Law § 50-e.

73. The CITY OF NEW YORK has wholly neglected or refused to make and adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.
74. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.
75. Plaintiff has complied with all conditions precedent to maintaining the instant action.
76. This action falls within one or more of the exceptions outlined in CPLR § 1602.
77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "76" with the same force and effect as if more fully set forth herein.
78. Upon information and belief, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest and booking of plaintiff HUSSEIN KADOUH.
79. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, knew or had reason to know, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged herein.
80. The aforementioned wrongful conduct caused plaintiff, HUSSEIN KADOUH, to suffer pain, injury and emotional distress, and damage and/or loss of property.
81. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "81" with the same force and effect as if more fully set forth herein.
83. Upon information and belief, defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest and booking of plaintiff HUSSEIN KADOUH.
84. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, knew or had reason to know, or should have known in the exercise of reasonable care, that the failure to properly supervise and train police officers in the exercise of their official duties made it highly predictable that the individual defendants, POLICE OFFICER PHILLIPS and POLICE OFFICERS John Doe 1-10, acting under color of law of the State and City of New York, would engage in the wrongful conduct heretofore alleged herein.
85. The aforementioned wrongful conduct caused plaintiff, HUSSEIN KADOUH, to suffer pain, injury and emotional distress, and damage and/or loss of property.
86. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "86" with the same force and effect as if more fully set forth herein.

88. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was the owner of a motor vehicle bearing New York State license plate number GSR 4312 and the marking "NYPD."
89. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, leased and/or rented the aforesaid motor vehicle.
90. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, leased and/or rented the aforesaid motor vehicle from a party not named as a defendant herein.
91. At all times hereinafter mentioned, the aforesaid vehicle was leased and/or rented.
92. At all times herein mentioned, defendant, THE CITY OF NEW YORK, maintained the aforesaid motor vehicle.
93. At all times herein mentioned, defendant, THE CITY OF NEW YORK, managed the aforesaid motor vehicle.
94. At all times herein mentioned, defendant, THE CITY OF NEW YORK, controlled the aforesaid motor vehicle.
95. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was the operator of the aforesaid motor vehicle.
96. At all times herein mentioned, defendant, THE CITY OF NEW YORK, operated the aforesaid motor vehicle, with the permission and/or consent, express and/or implied, of its owner.
97. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was the owner of a motor vehicle bearing New York State license plate number GSR 4312 and the marking "NYPD."
98. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, leased and/or rented the aforesaid motor vehicle.

99. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, leased and/or rented the aforesaid motor vehicle from a party not named as a defendant herein.
100. At all times hereinafter mentioned, the aforesaid vehicle was leased and/or rented.
101. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, maintained the aforesaid motor vehicle.
102. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, managed the aforesaid motor vehicle.
103. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, controlled the aforesaid motor vehicle.
104. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was the operator of the aforesaid motor vehicle.
105. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, operated the aforesaid motor vehicle, with the permission and/or consent, express and/or implied, of its owner.
106. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, was the owner of a motor vehicle bearing New York State license plate number GSR 4312 and the marking "NYPD."
107. At all times hereinafter mentioned, defendant, POLICE OFFICER PHILLIPS, leased and/or rented the aforesaid motor vehicle.
108. At all times hereinafter mentioned, defendant, POLICE OFFICER PHILLIPS, leased and/or rented the aforesaid motor vehicle from a party not named as a defendant herein.
109. At all times hereinafter mentioned, the aforesaid vehicle was leased and/or rented.

110. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, maintained the aforesaid motor vehicle.
111. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, managed the aforesaid motor vehicle.
112. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, controlled the aforesaid motor vehicle.
113. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, was the operator of the aforesaid motor vehicle.
114. At all times herein mentioned, defendant, POLICE OFFICER PHILLIPS, operated the aforesaid motor vehicle, with the permission and/or consent, express and/or implied, of its owner.
115. On July 5, 2018, there was a collision involving the aforesaid motor vehicle and the motorbike, at the above-mentioned location.
116. As a result of the aforementioned collision, Plaintiff, HUSSEIN KADOUH, was caused to sustain severe and permanent personal injuries.
117. The collision and the Plaintiff's resultant injuries were caused solely by the negligence, carelessness and/or recklessness of the defendants, without any negligence on the part of the plaintiff contributing thereto.
118. As a result of the foregoing, Plaintiff, HUSSEIN KADOUH, was rendered sick, sore, lame and disabled, was seriously and permanently injured, have suffered injuries both internal and external, pain and mental anguish, was compelled to seek care and attention and, upon information and belief, will in the future be compelled to seek care and attention; was prevented from following usual vocation and/or avocation, sustained property damage, and was otherwise injured and damaged.

119. That actual written notice of the defective conditions complained of is not a condition precedent to the commencement of this action as the defendants were negligent in creating said conditions.
120. As a result of the foregoing, Plaintiff, HUSSEIN KADOUH, has sustained a serious injury and/or economic loss greater than basic economic loss, as defined in Section 5102 of the Insurance Law of the State of New York.
121. This action falls within one of the exceptions contained in Article 16 of the CPLR.
122. Plaintiff has complied with all conditions precedent to the bringing of this action against the defendants. Subsequent to the happening of the above-referenced event complained of herein, plaintiff did duly file a Notice of Claim within ninety (90) days after this claim arose, with the defendants.
123. That more than thirty (30) days have elapsed since the filing of said Notice of Claim, and such claim remains unadjusted, and the plaintiff commenced this action less than one (1) year and ninety (90) days after the accrual of plaintiff's cause of action. This action is commenced within the time limits for the commencement thereof.
124. The plaintiff has complied with all of the provisions and conditions precedent to the bringing of this action and has complied with all of the provisions of the Charter of the City of New York in relation thereto.
125. As a result of the foregoing, plaintiff has been damaged by defendants in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
126. The defendants are liable to plaintiff under applicable law.

127. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "126" with the same force and effect as if more fully set forth herein.
128. Defendant, POLICE OFFICER PHILLIPS, individually, had full and voluntary control of the vehicle and its acceleration, braking and steering functions when he steered the NYPD vehicle toward plaintiff.
129. Defendant, POLICE OFFICER PHILLIPS, individually, had reason to know and knew, or should have known, that steering the vehicle toward plaintiff would cause plaintiff to apprehend an imminent harmful bodily contact.
130. Defendant POLICE OFFICER PHILLIPS' act of steering the vehicle toward plaintiff did in fact cause plaintiff, HUSSEIN KADOUH, to apprehend an imminent harmful bodily contact.
131. As a result of POLICE OFFICER PHILLIPS' conduct, plaintiff experienced fear, anxiety and distress, "fight or flight" and the physical symptoms attendant thereto, including elevated adrenaline, blood pressure and heart rate, was placed in a dangerous and precarious position, and was forced to alter his path in an attempt to evade the harmful contact.
132. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendant in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
133. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "132" with the same force and effect as if more fully set forth herein.

134. Defendant, POLICE OFFICER PHILLIPS, individually, had reason to know and knew, or should have known, that steering the vehicle toward plaintiff would cause plaintiff to suffer a harmful bodily contact.
135. Defendant POLICE OFFICER PHILLIPS' act of steering the vehicle toward plaintiff did in fact cause plaintiff to suffer a harmful bodily contact when said vehicle came violently into contact with plaintiff's motorbike and with plaintiff's person.
136. As a result of POLICE OFFICER PHILLIPS' conduct, plaintiff sustained pain, injury and disability.
137. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendant in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.
138. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "137" with the same force and effect as if more fully set forth herein.
139. Defendant, POLICE OFFICER PHILLIPS, individually, unreasonably failed to perceive the risk that plaintiff, HUSSEIN KADOUH, in apprehending an imminent harmful bodily contact and in subsequently suffering a harmful bodily contact, would sustain emotional distress, including fear, anxiety and emotional trauma.
140. The emotional distress that plaintiff, HUSSEIN KADOUH, sustained was a natural and expected consequence of apprehending an imminent harmful bodily contact.
141. The emotional distress that plaintiff, HUSSEIN KADOUH, sustained was a natural and expected consequence of suffering a harmful bodily contact.

142. The systematic pattern of conduct alleged herein consists of a large number of individual acts of violence, excessive force, intimidation, wrongful search, wrongful seizure, false arrest, false imprisonment and malicious prosecution against plaintiff and other citizens by members of the police department of the defendant, THE CITY OF NEW YORK, acting in concert with persons unknown to the plaintiff and under color of law, which are illegal, improper and unrelated to proper duties and activities of police officers.

143. As a result of the foregoing, plaintiff HUSSEIN KADOUH is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendant in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

144. The foregoing represent violations of plaintiff's Federal, State and City constitutional rights, including under 42 U.S.C. § 1983 and the State and City codifications thereof, and the court has jurisdiction over plaintiff's Federal, State and City causes of action.

WHEREFORE, plaintiff demands judgment against defendants in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

Dated: New York, New York
October 1, 2019

KUBICK & ASSOCIATES, P.C.
Attorneys for Plaintiff
32 Broadway, Suite 1514
New York, NY 10004
212.684.7541

ATTORNEY VERIFICATION

The undersigned, an attorney duly admitted to practice in the Courts of the State of New York affirms: that the undersigned is the attorney for the plaintiff in the within action; that the undersigned has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that the same is true to his knowledge, except as to those matters therein stated upon information and belief, and that as to those matters, he believes them to be true. The undersigned further says that the reason this affirmation is made by the undersigned, and not by the Plaintiff, is that the undersigned's offices are located in a County other than where Plaintiff resides.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
October 1, 2019



RICHARD A. KUBICK